

SOTOMAYOR, J., dissenting

ing their President.” 91 F. 4th 1173, 1195 (CADC 2024) (*per curiam*). It also, of course, implicates Congress’s own interest in regulating conduct through the criminal law. Cf. *Fitzgerald*, 457 U.S., at 749, n. 27 (noting that the case did not involve “affirmative action by Congress”). Yet the majority believes that a President’s anxiety over prosecution overrides the public’s interest in accountability and negates the interests of the other branches in carrying out their constitutionally assigned functions. It is, in fact, the majority’s position that “boil[s] down to ignoring the Constitution’s separation of powers.” *Ante*, at 640.

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Finally, in an attempt to put some distance between its official-acts immunity and Trump’s requested immunity, the majority insists that “Trump asserts a far broader immunity than the limited one [the majority has] recognized.” *Ante*, at 632. If anything, the opposite is true. The only part of Trump’s immunity argument that the majority rejects is the idea that “the Impeachment Judgment Clause requires that impeachment and Senate conviction precede a President’s criminal prosecution.” *Ibid.* That argument is obviously wrong. See *ante*, at 632–634. Rejecting it, however, does not make the majority’s immunity narrower than Trump’s. Inherent in Trump’s Impeachment Judgment Clause argument is the idea that a former President who was impeached in the House and convicted in the Senate for crimes involving his official acts could then be prosecuted in court for those acts. See Brief for Petitioner 22 (“The Founders thus adopted a carefully balanced approach that permits the criminal prosecution of a former President for his official acts, but only if that President is first impeached by the House and convicted by the Senate”). By extinguishing that path to overcoming immunity, however nonsensical it might be, the majority arrives at an official-acts immunity even more expansive than the one Trump argued for. On the majori-